

23CHCV00589 23CHCV00589

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 23CHCV00589 Hearing Date: July 9, 2026 Dept: F47

Dept. F47

Date: 7/9/26 TRIAL

DATE: 2/1/27

Case #23CHCV00589

SUMMARY

JUDGMENT

Motion filed on 2/10/26.

MOVING PARTY: Defendant Jill Collier, FNP-C

RESPONDING PARTY: Plaintiff Maeghan Roca

NOTICE: ok

RELIEF REQUESTED: An order granting summary judgment in favor of Defendant Jill Collier, FNP-C on Plaintiff Maeghan Roca's complaint.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

On 3/1/23, Plaintiff Maeghan Roca (Plaintiff) filed this action for medical negligence against Defendant Jill Collier, FNP-C (Defendant)

and others for care and treatment Plaintiff received on or about 3/9/22 and continuing thereafter. (Complaint ¶15).

On 4/13/21, Plaintiff presented to Defendant at Alta California Medical Group, which is the only date Plaintiff presented to, or was seen by Defendant. (Separate Statement (SS) 1-2). Defendant prescribed Plaintiff Errin 0.35 tablet, a progesterone-only birth control pill which contains no estrogen. (SS 3-5).

On 2/10/26, Defendant filed and served the instant motion seeking an order granting summary judgment in favor of Defendant on Plaintiff's complaint. Plaintiff did not oppose or otherwise respond to the motion. On 6/30/26, Defendant filed and served a Notice of Non-Receipt of Opposition to the motion.

ANALYSIS

The plaintiff in a medical malpractice/negligence action must establish that the defendant failed to conform to the applicable medical standard of care and that such failure proximately caused the alleged injury. *Landeros* (1976) 17 C3d 399, 410; *Bromme* (1992) 5 CA4th 1487, 1499; *Banerian* (1974) 42 CA3d 604, 611-612. "The standard of care against which the acts of a medical provider are to be measured is a matter peculiarly within the knowledge of experts. *Landeros*, *supra* at 410; *Jambazian* (1994) 25 CA4th 836, 844-845. As such, negligence in a medical malpractice case must be affirmatively established through competent expert testimony. See *Charlie L.* (2025) 107 CA5th 1117; *Zaragoza* (2025) 109 CA5th 113; *Louie* (1967) 249 CA2d 774, 785.

The unrefuted medical opinion of Ryan M. Klein, M.D. establishes that Defendant met the applicable standard of care at all times with regard to the care and treatment provided to Plaintiff and that nothing Defendant did, or did not do, caused or contributed to any injury claimed by Plaintiff in this matter. (See Dr. Klein Decl.)

CONCLUSION

The motion is granted.